

24CMCV00563 24CMCV00563

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-07

Motion: DISTRICT'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C08%2F07%2F2026

Source SHA-256: 5ed92fcd3cd23671af7cebc6ef7cee0f21f9f95dbb971b12ff7be48a16986ddd

Case Number: 24CMCV00563 Hearing Date: August 7, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JANE DOE C.W., et al.,

Plaintiffs,

vs.

COMPTON

UNIFIED SCHOOL DISTRICT,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24CMCV00563

[TENTATIVE]

ORDER RE: DISTRICT'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE,
SUMMARY ADJUDICATION

Dept.

A

DATE:

August 7, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 04/16/2024

TRIAL:

10/12/2026

MOVING

PARTY: Defendant Compton
Unified School District

RESPONDING

PARTY: Plaintiff Jane Doe C.W.

1.

Background

Plaintiff Jane Doe C.W.

("Plaintiff") alleges that on July 5, 2023, Plaintiff was a student at Bursch Elementary School ("Bursch"), a school within Compton Unified School District ("District"). Plaintiff alleges that during school hours and while on school property, Plaintiff found and picked up an unexploded firework. Plaintiff alleges that she informed school staff that she had found a firework, but that staff did not confiscate the firework or inform other parties. Plaintiff alleges that she took the firework home and attempted to light the firework, but it apparently failed to detonate, after which she picked up the firework and the firework detonated while Plaintiff was holding it, causing Plaintiff personal injury.

2.

Evidentiary

Objections

Plaintiff objects to portions of the declaration of Eric S. Elias. The court overrules objections 1-7. District objects to portions of the declarations of Conal Doyle and Jane Roe. The court finds that these objections are not material to its determination on this matter, and therefore declines to rule on them.

3.

Requests

for Judicial Notice

Plaintiff and District each request that the court take judicial notice of various statutes and municipal

regulations. Pursuant to Evidence Code § 451, judicial notice shall be taken of “The decisional, constitutional, and public statutory law of this state and of the United States.” Judicial notice may also be taken of “[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States.” (Evid. Code § 452, subd. (b).) The court takes judicial notice of the requested documents.

4.

Discussion

District moves for summary judgment, or in the alternative, summary adjudication of Plaintiff’s causes of action. District contends that this action is barred under Education Code § 48088 because Plaintiff’s injury took place off-campus. District also contends that Plaintiff’s injury was unforeseeable and recovery is barred by the doctrine of unclean hands. In opposition, Plaintiff contends that there is a triable issue of material fact as to District’s on-campus negligence causing Plaintiff’s injury.

On July 28, 2026, District filed a reply separate statement. This is prohibited under Code of Civil Procedure § 437c, subd. (b)(4). The court will therefore not consider District’s impermissible reply separate statement.

“Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119 (Adler).)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more

elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A plaintiff or cross-complainant moving for summary judgment or summary adjudication “has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Id., subd. (p)(1).)

“Once the [moving party] has met that burden, the burden shifts to the [nonmoving party] to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) “If the [nonmoving party] cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion. (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1271.)

a.
Education Code § 44808 and foreseeability

Under California Education Code § 44808, a school district is not liable for the conduct or safety of a student when that student is not on school property unless the school district has specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. Liability is limited for after-hours, off-campus activity absent a specific undertaking by the school during which a student is injured. (LeRoy v. Yarboi (2021) 71

Cal.App.5th 737, 743.) However, a school may be liable for injuries suffered off-campus, after hours, or otherwise away from the school's premises if the injury resulted from the school's negligence that occurred on the school's premises. (*Perna v. Conejo Valley Unified School Dist.* (1983) 143 Cal.App.3d 292, 295; *Bassett v. Lakeside Inn, Inc.* (2006) 140 Cal.App.4th 863, 870.)

District contends that

Plaintiff's injury occurred off-campus and after school hours when Plaintiff, after returning home from school, lit a firework that she found on school grounds. District contends that prior to Plaintiff finding the firework, District's employees thoroughly examined the entire campus, including the area where Plaintiff found the firework, and were not negligent in doing so.

In support of this

contention, District provides the deposition of Willie Wilbert, who states that he instructed District employees to be very thorough in campus cleanup on the morning of the incident because it was the day after the 4th of July. (Wilbert Depo. 90:12 – 90:15.) Wilbert cleaned the area between the storage shed and the annex, where Plaintiff would later find the firework, and did not find any fireworks or debris in that area. (Wilbert Depo. 146:15 – 147:3.)

Based on this, the court

concludes that no reasonable trier of fact could find that District's employees were negligent in searching campus for fireworks so as to cause Plaintiff's injury. Therefore, District has established that there are no triable issues of material fact as to Education Code § 44808 immunity. The burden now shifts to Plaintiff.

Plaintiff contends that a

District employee, Mr. Mora, was aware that Plaintiff had a firework while on campus and, contrary to District policy, negligently failed to confiscate the firework. Plaintiff contends that this raises a triable issue of material fact as to whether District's on-campus negligence caused Plaintiff's injury.

Plaintiff provides her

own testimony, in which she states that she showed a District employee, Mardonio Mora, the firework before returning home from school. (Pltf. Depo. 209:8 – 210:19.) Plaintiff states that Mora did not respond. (Pltf. Depo. 211:5 –

211:21.) Mora stated, in his deposition, that school protocol would have been to confiscate the firework, then meet with the principal and Plaintiff's parents to explain the gravity of the situation. (Mora Depo. 186:23 – 187:16.) Although District contends that it was unforeseeable that Plaintiff would set off the firework in secret and without supervision, the fact that school protocol would be to confiscate the firework indicates that District recognized that it is reasonably foreseeable that a child in sole possession of a firework might misuse the firework. (See *Dix v. Live Nation Entertainment, Inc.* (2020) 56 Cal.App.5th 590, 612.) No evidence was presented that Mora made any attempt to confiscate the firework in conformance with school protocol.

Based on the provided evidence, a reasonable trier of fact could find that Mora, as a District employee and while on campus and during school hours, was negligent in supervising Plaintiff by failing to confiscate the firework, that Mora's negligence caused or contributed to Plaintiff's later off-campus injury, and that Plaintiff's injury was a foreseeable result of Mora's negligence. Accordingly, Plaintiff has established a triable issue of material fact as to whether District's on-campus negligence caused or contributed to Plaintiff's injury and, correspondingly, as to the applicability of Education Code § 44808 immunity.

b. Unclean hands

District contends that Plaintiff's recovery is barred as a matter of law by the doctrine of unclean hands. District contends that Plaintiff concealed the firework from District employees and her mother, knowing that it was dangerous and thereby causing her own injuries, and that therefore Plaintiff cannot recover.

The doctrine of unclean hands provides a complete defense to an action where there is inequitable conduct by the plaintiff in connection with the matter in controversy. (*Dickson, Carlson & Campillo v. Pole* (2000) 83 Cal.App.4th 436, 446.) More clearly, the doctrine of unclean hands bars recovery where the plaintiff's misconduct relates directly to the matter in controversy and is of a character that renders the plaintiff's interests undeserving of protection. (*Blain v. Doctor's Co.* (1990) 222 Cal.App.3d 1048, 1060.)

District cites to *Bolar v. Maxwell Hardware*

Co.

(1928) 205 Cal. 396 and *Mathews v. City of Albany* (1939) 36 Cal.App.2d 147 for the proposition that the doctrine of unclean hands bars recovery where a minor secretly and knowingly lit explosives. However, neither *Bolar* nor *Mathews* concern the doctrine of unclean hands; rather, the court found that the plaintiff in each case was contributorily negligent. Therefore, these cases do not stand for the proposition that the doctrine of unclean hands bars recovery in this action, particularly as California has since abandoned the doctrine of contributory negligence. (*Avila v. Citrus Community College Dist.* (2006)

38 Cal.4th 148, 161 (*Avila*).)

District has provided no other authority

establishing that the doctrine of unclean hands is applicable here as a matter of law.

c. District's

duty

District contends that Plaintiff

assumed the risk of her injury by lighting the firework in secret, with full knowledge of its danger, such that District had no duty to mitigate Plaintiff's injury.

The doctrine of primary

assumption of risk arises when the defendant, as a matter of law and policy, has no duty to protect the plaintiff from particular harms. (*Gordon v. ARC Manufacturing, Inc.* (2019)

43 Cal.App.5th 705, 711.) A plaintiff has primarily assumed the risk of an activity when the risk is inherent to that activity, such that the risk cannot be eliminated without changing the fundamental nature of the activity, and the plaintiff deliberately and with awareness of the specific risks inherent to the activity engages in that activity. (*Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658; see *Avila*, *supra*, 38 Cal.4th at p. 161.)

District argues that

Plaintiff primarily assumed the risk because she operated fireworks without supervision, which inherently carries a risk that the fireworks will cause injury. However, here, the firework was defective and went off in Plaintiff's hand after she had stopped attempting to light the firework. (Pltf. Depo. 260:14 – 260:24.) The risk of a malfunction causing a firework to go off

unexpectedly while not being actively and intentionally set off is not inherent to the activity of lighting fireworks, nor is it inherent to the activity of lighting fireworks without supervision. (See *Bunch v. Hoffinger Industries, Inc.* (2004) 123 Cal.App.4th 1278, 1301 [“...in using a defective product, the user does not intend to confront a risk that is inherent in its use.”].) District has therefore failed to establish that there are no triable issues of material fact as to the existence of a duty and that it is entitled to judgment as a matter of law.

d. Compton
Municipal Code Chapter 22-2

District contends that Compton Municipal Code Chapter 22-2 provides that the owner of a residential property where dangerous fireworks are unlawfully set off is strictly liable for injuries arising from those fireworks. District contends that Plaintiff's injury took place at her grandmother's residential property, and therefore Plaintiff's grandmother is strictly liable for Plaintiff's injury, not District. However, Compton Municipal Code Chapter 22-2.22, subd. (e), cited by District, provides that such owners of residential properties are subject to administrative fines, not that they are solely and strictly liable for all liability arising from injuries arising from fireworks on their property, overriding Plaintiff's legal rights under California law. Compton Municipal Code Chapter 22-2.22 therefore does not foreclose District's liability for Plaintiff's injury.

A
motion for summary judgment must completely dispose of all causes of action in a complaint, while a motion for summary adjudication must completely dispose of all issues in a cause of action. (Code Civ. Proc., § 437c, subds. (c), (f)(1).)

As the court has found that either a triable issue of material fact exists or that District has failed to establish a triable issue of material fact on all of District's arguments pertaining to the entire action, the court will deny District's motion for summary judgment. The court will proceed only as to summary adjudication.

e.
Dangerous condition of public property

District contends that

the presence of the firework on campus cannot qualify as a dangerous condition of public property within the meaning of Government Code § 830, and therefore Plaintiff's cause of action for dangerous condition of public property fails.

Government

Code § 835 provides that liability may arise against a public entity for creating or permitting a dangerous condition of public property to arise. A dangerous condition of public property is defined as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property ... is used with due care in a manner in which it is reasonably foreseeable that it will be used." (Gov. Code § 830, subd. (a).) "A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself." (Hernandez v. City of Stockton (2023) 90 Cal.App.5th 1222, 1230, emphasis in original.)

The

presence of a removable firework on the campus does not constitute a physical deficiency in the property so as to create a dangerous condition within the meaning of Government Code § 830. "A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." (Huerta v. City of Santa Ana (2019) 39 Cal.App.5th 41, 48.) District has therefore established that there are no triable issues of material fact as to this matter and that it is entitled to judgment as a matter of law. The burden now shifts to Plaintiff.

Plaintiff

cites to Briggs v. State of California (1971) 14 Cal.App.3d 489 (Briggs) for the proposition that a temporary addition to public property may create a dangerous condition of public property. In Briggs, the court found that after a landslide had blocked part of a road, a dangerous condition of public property was created by a combination of the blockage, signage that was inadequate to warn oncoming drivers, and a defective fence around the area. Briggs, therefore, stands as an example of defective physical characteristics in a public property's design or relationship to its surroundings. Briggs does not stand for the proposition, as Plaintiff contends, that any dangerous object placed or found upon a public property may create a dangerous condition of

public property.

Furthermore,

in order to establish liability under Government Code § 835, the dangerous condition must exist at the time of the injury. (County of Ventura v. City of Camarillo (1978) 80 Cal.App.3d 1019, 1025.) Even if the court were to conclude that the presence of the firework was a dangerous condition, it was removed from the campus as Plaintiff took it home, where Plaintiff was subsequently injured. (Pltf. Depo. 222:22 – 223:11.) Therefore, under this reasoning, the dangerous condition did not exist on campus at the time of Plaintiff's injury.

The

court will therefore grant summary adjudication in favor of District on Plaintiff's second cause of action for dangerous condition of public property.

5.

Conclusion

Based

on the foregoing, the court DENIES District's motion for summary judgment.

The

court GRANTS IN PART District's motion for summary adjudication. The court GRANTS District's motion for summary adjudication as to Plaintiff's second cause of action for dangerous condition of public property. The court DENIES District's motion for summary adjudication as to all other issues.

District is ordered to give notice.

DATED: August 7, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court